

To,
Mr Pruthviraj Santosh Mohite
B-128, Akshat Nagar, Kolki, Satara, Maharashtra - 415523.

Code : 19847
Grade : SL2

Department : Infographics, Analytics & Audit
Location : Head Office

Appointment Letter

Dear Mr Pruthviraj,

We are pleased to appoint you as a **Sr. Executive**, in Grade **SL2**, in the **Infographics, Analytics & Audit Department** of our Company with effect from **13th June, 2022** on the following terms and conditions:

1. Appointment:

- a) **Probation:** You will be on probation for a period of three (03) months from the date of your joining. During the probation period your services can be terminated without assigning any reason whatsoever, by giving to you one (01) days' notice or one (01) day's salary in lieu thereof. If you resign during the probation period, you will be required to give to the Company seven (07) days' notice in writing or seven (07) day's salary in lieu of it.
- b) **Confirmation:** After successful completion of your probation, you will be confirmed in the services of the Company provided that your work and conduct are found to be satisfactory. You will be informed in writing about your confirmation into the services of the Company. In case of unsatisfactory performance, your probation period is deemed to be automatically extended and you will remain on probationer status till such time as a written confirmation letter is issued to you by the Company. Confirmation cannot be deemed to have been granted in absence of a Confirmation Letter issued by the Company to you in writing. In case of your continued nonperformance despite extension/s in your probation period, then, the Company reserves the right to terminate your services forthwith during the probation period or in any of its extension thereof, in line with the previous clause as above.
- c) **Termination:** During your tenure, and after confirmation, if the Company wishes to terminate your services with cause, if you are found guilty of non-performance, dishonesty, disobedience, disorderly behavior, negligence, indiscipline, absence from duty without permission or of any other conduct considered by us to be detrimental to our interests, or violation of one or more terms of this Appointment Letter, your employment may be terminated without providing you with any notice.
- d) If you intend to leave the employment of the Company, you will have to give one month's notice in writing in advance and/or one month gross salary in lieu thereof. The Company may refuse to accept notice pay and in those circumstances you will be required to serve for the full notice period. Similarly, if the Company wishes to terminate your services (without cause), the Company will give you one month's notice in writing in advance 'Or' one month gross salary in lieu thereof and terminate your services.
- e) **Single Occupation/Conflict of Interest:** You are hereby expressly accepting that you will not take part in any other activity with the insurance companies, our business competitors, professional practice /consultancies /advisories/ practitioner whichever is applicable to you in any way as a part time job during the period of employment of our organization without prior written permission / No Objection in writing from the competent authority of the management which will only be sanctioned/issued against a written application submitted by you and provided it is not inconsistent/ and /or against the business interests of the organization and does not create any conflict of interests or risks to the Companies [business] interests.

2. Remuneration: Your remuneration details are enclosed as Annexure – I.

3. Your joining is subject to submission of the following documents:

- a) Permanent & Temporary address proof of your residence along with your Telephone & Mobile numbers.
- b) Acknowledged/accepted Resignation/Relieving letter from the previous organization.
- c) Proof of Date of Birth, Experience, Academic/Technical/Professional Educations /Qualifications.
- d) Five Passport size colour Photographs.
- e) Blood Group detail.
- f) Photocopy of PAN Card and Aadhaar Card.
- g) Father's and Mother's Permanent Address with Relevant Govt. ID Proof [Aadhaar Card, Electricity/ Telephone Bill, Passport, Driving License, Election Commission ID Card, Ration Card with address, Bank Passbook with address (Any 1)]
- h) Compliance with any other documents that the company will issue to you as a part of the joining/pre-employment formalities.

CIN : U72900PN2000PTC015558

IRDAI Registration No. : 005

MDIndia Health Insurance TPA Private Limited
(Formerly Known as MDIndia Healthcare Services (TPA) Pvt. Ltd.)

General & Claim Enquiry Helpline
Fax No. : 1860 - 233 - 4449
Toll Free : 1800 - 209 - 7777
Email : customercare@mdindia.com

Head Office :
Sr. No. - 46/1, E-space, A2 Bldg., 3rd floor,
Pune - Nagar Road, Vadgaon Sheri,
Pune - 411 014, Maharashtra, India
Website : www.mdindiaonline.com

Cashless Enquiry Helpline
Fax No. : 1860 - 233 - 4449
Toll Free : 1800 - 209 - 7800
Email : authorisation@mdindia.com

4. **Standard Deductions and Benefits:** On submission of necessary documents and as per the eligibility terms and conditions you will be covered subject to standard deductions under various schemes like Provident Fund, E.S.I.C., Group Gratuity Assurance Scheme (Gratuity Act 1972), etc.

The Particulars of the Standard Deductions & Benefits are as follows:

- a) **Provident Fund:** Provident Fund @ 12% on Basic + Special Allowance/DA will be deducted from your salary every month and an equal amount will be contributed by the Company being employer's share of contribution to your PF Account. If you are already a member of Provident Fund Scheme, please inform your P.F. Account Number to HR Department in writing.
 - b) **ESI:** The Scheme protects all employees engaged on a monthly remuneration not exceeding Rs. 21,000/- per month. An employee covered under the scheme has to contribute 0.75% of the Gross Salary, whereas the employer contributes 3.25% of the Gross Salary payable to an employee. The total contribution in respect of an employee thus works out to 4% of the salary payable.
 - c) **Group Gratuity Assurance Scheme:** The Company offers payment of Gratuity computed as per the relevant Act.
 - d) **Profession Tax & Income Tax:** Profession Tax and income tax will be deducted as applicable from your salary.
 - e) **Statutory Bonus:** This will be applicable as per the Statutory Bonus Act.
5. **Performance Evaluation:** Good performance is the key measure of continuity in this employment & the scheme. The employee agrees to continually deliver his best/optimal performance and will improve his skills & competencies and undergo any training programs arranged for him whenever so required without protest. The employee also agrees that periodic assessments of a verbal & written nature in the form of tests, exams etc. will be conducted to improve performance & identify weak performers and the employee must undergo such tests and evaluations without option. The Company may also employ any other performance management tool as deemed fit.
6. **Leave:** You will be entitled for leaves in accordance with the Company rules, a copy of which is available with the HR Department. Any leave planned to be availed by you must be applied for atleast 2 (two) working days in advance and written approval must be obtained from your designated Manager or Supervisor without which it will be treated as leave without pay (LWP).
7. **Attendance & Shift Working:** You will report and attend duties in the shift assigned to you only. You cannot attend work in any other shift except in the shift assigned to you. You are prohibited from over extending your shift working into the next adjacent shift unless the same is approved in writing by your manager or supervisor atleast 1 (one) working day in advance.
8. **Designation and Reporting:** Your designation is merely indicative of the responsibilities that you are required to carry out. The Company shall be entitled to require you at any time to perform any other administrative, managerial, supervisory or any other functions and you shall be bound to carry out such other functions. You will report to the concerned Department Head or any other official as advised by the Management.
9. **Devotion and Secrecy:**
- a) You will devote your full time to the work of the Company and shall not undertake any direct/indirect business of work honorary or remunerative, except with the written permission of the Company.
 - b) So long as you are in the employment of the Company, you will at all times observe total secrecy in respect of any technical trade of the business or any other information that might come to your knowledge or possession which according to the Company are necessarily confidential and form valuable property of the Company and not to be made available to any external party, furthermore, you will not disclose such or any other work related information/data without the authority of the Company to anyone other than the Company's Officer authorized to receive them and that even after you have ceased be in the service of the Company you shall not disclose them to anyone. You shall maintain proper discipline and dignity of your office.
10. **IPR and Ethics:**
- a) If, during the period of your employment with us you achieve any invention, process improvement, operational improvement or any other process/methods likely to result in more efficient operation of any of the activities of the Company, the Company shall have preferential right to use, utilize and exploit such improvement and you shall assign all your rights to the Company for the purpose of seeking any rights in respect thereof or for any other purpose.

- b) Upon leaving the employment of the Company, you will not take with you any drawing, blueprint or other reproduction or other data, tables, calculations, letters or other documents, communication or any other writing of any nature whatsoever pertaining to the business of the Company or any of its subsidiaries.
11. **Disclosure of Confidential Company Information:** In the course of employment, the Employee will have access to confidential matters pertaining to the Company's affairs. The Employee agrees and undertakes that, except as required for the conduct of Company business, he will not at any time during his employment or after termination, divulge or convey any confidential information, knowledge, data, or property related to the Company other than that which is in the public domain, unless authorized by the Company in writing. The Employee agrees upon hire to execute the Company's "Employee Confidentiality Agreement" as attached.
12. **Return of Company Property, Equipment and Documents:** Upon termination of employment for any reason, the Employee will promptly return to the Company all property, equipment, hard and soft copy documents and other materials relating to the Company's business, together with all copies thereof, including but not limited to: Card keys (ICard), Credit cards, Laptops, Computer equipment, Company reports, Operating manuals, Computer systems, Plans or Programs, Strategic business plans, financial forecasts, market summaries and customer lists.
13. **No Solicitation of Customers or Employees:** The Employee agrees that the Company has invested substantial time and effort and resources in assembling, training and managing its present staff of personnel, which constitutes a significant asset of the Company. Accordingly the employee agrees that he will not at any time during his employment or for one year after termination, directly or indirectly induce or solicit or encourage any of the Company's or Company's employees to leave their employment with the Company or Company's and will not directly or indirectly disclose the names, addresses, telephone numbers, salary, or personal information of the Company or Company's personnel without express written authorization.
14. **Company's Ownership of Intangibles:** All processes, techniques, trade secrets, computer programs or applications, formulas, inventions, copyrights, trademarks and other intangible rights that may be conceived or developed by Employee, either alone or with others, during the term of Employee's employment (hereafter "work products"), whether or not conceived or developed during Employee's working hours, whether or not reduced to writing and with respect to which the equipment, supplies, facilities, premises or property of the Company were used, or that relate to the business of the Company that result from any work performed by the Employee for or on behalf of the Company, shall be the sole property of the Company.
15. **Conflict of Interests:** During the employment, the Employee shall not enter into or engage in or be an officer, employee, director, partner, agent or consultant of or have any material direct or indirect investment or other interest in any business, person, firm, corporation or other entity involved in any business competitive with the business of the Company or similar to the business of the Company (other than a passive investment interest in a publicly traded Company).
16. **Some Acts of misconduct attracting disciplinary action including termination: (Including but not Limited to):** The Company will initiate disciplinary action against you including termination if you are found to be violating the rules & policies of the Company &/or for: consumption of alcohol or drugs during working hours or reporting to work under the influence thereof, sexual harassment, non-performance, disobedience, disrespect to your colleagues, management &/or trust, disorderly behavior, improper (abusive/insulting/rude/loud) language/communication, improper attendance, absenteeism or frequent leave taking, shift indiscipline, causing damage to (Company/trust) property or work, usage of cell phones during work hours for personal matters, gossiping (chit chatting) on the work floor, creating disturbance or nuisance on the work floor, not following meal & break timings, remaining absent from the work place or whiling away, wasting time during work hours, not accepting (written & verbal) communication, letters, orders & instructions issued by the management/Company, behaving in a manner that is not conducive to the achievement of objectives of the project/scheme and/or the interests of the Company, resisting any orders, instructions or advice issued by the Company, sloganeering, retaliating, coercing co-workers to engage in any of the above acts and any acts, omission or commission found to be detrimental to the interests of the project/scheme & the Company. The above list is only indicative & not comprehensive. Any other matters as prescribed under the law or in the rules, regulation, terms and policies of the Company & the trust will also attract disciplinary actions including termination.
17. **Anti-Corruption and Bribery:** You hereby unequivocally agree that you will not engage in any act or practice of corruption or bribery and which cannot be violated whether intentionally, unintentionally, directly or indirectly. We do not promise, offer, give, authorize, directly or indirectly, a Bribe, Illegal Gratification or Anything of Value to anyone, including any Government Official, employee of, or representative of or to, a government-owned or controlled entity, or to any private person or employee of any business entity, to improperly influence any act or decision of such a person/s to obtain or retain the business entity, to improperly influence any act or decision of such person/s to obtain or retain business or to secure any improper/unfair advantage for the Company. This prohibition against offering, promising, or paying bribes and any act of corruption, illegal gratification and granting questionable favors also applies to all third parties who provide services and act on the Company's behalf, such as suppliers, agents, consultants, distributors, and business partners, hospitals/network providers.
18. **Prohibition from Accepting Gifts, Presents, Mementos, Enticements, etc.** You hereby expressly agree that you will not accept any souvenirs, mementos, gifts, promotional pleasantries, hospitality, food, entertainment, inducements/enticements, directly or indirectly from IC Officials, Hospitals, Prospective Clients, Corporate Clients, Service Providers, Vendors or anyone who has business relations with the Company, whether in the normal course of work or during festivals.

19. Anti-Collusion: You hereby agree that you are strictly prohibited from, whether intentionally, unintentionally, knowingly, unknowingly, directly or indirectly, colluding, cooperating, supporting or partnering with any other business entity, colleague/co-employee of the same Company or of any other Company and/or any other person/s, firm/s or individual/s in causing to commit or committing, in collusion, any act/deed which is in violation of the Company policies, of the law (like the IPC), the terms of this appointment letter, or which in any way harms the interests of the Company or is detrimental to the interests of the Company or its employees and which act/deed is in any way illegal, criminal or unfair to the Company and its interests and which causes loss to the Company whether financial or otherwise.

20. Other Terms and Conditions:

- a) You shall maintain and keep in your safe custody books, registers, documents, floppies, compact discs and other papers as may be issued to you or may come in your possession and shall return the same as required.
- b) You will park your vehicle in the office parking floor and/or area assigned to you by the Company from time to time and strictly follow all Company parking rules.
- c) You will forthwith inform the Company in writing of any changes in your name, residential address, phone numbers, email ID's, any proceedings of a criminal or legal nature in the police station or court of law and noteworthy medical &/or mental conditions.
- d) It is agreed that it shall be at the Company's discretion to vary from time to time the benefits, facilities or perquisites that may be extended to you on a review of the Company's decision on this behalf.
- e) **Transferable Job:** Your appointment and job is transferable and the Company at its discretion may transfer you to any other place in India and/or outside India and as such you may at any time be transferred to any of the offices of the Company, its associate organizations with whom the Company has transactions, [whether the office subsidiary, associate or organization is in existence today or is to be set up hereafter]. While every attempt will be made to give you reasonable advance notice of such transfer, in some cases emergency transfers may be made effective immediately and you will be required to comply by such service transfer orders to another city or location.
- f) On your transfer to any other place you will observe the work timings and holidays as applicable to the location and place of work where you have been transferred without any change in remuneration, unless otherwise stated.
- g) This appointment and its continuance are subject to your being found and remaining medically (Physically and Mentally) fit. The Company reserves the right to ask you to undergo any medical examinations with a medical facility or doctor appointed by the Company whenever the Company wishes to do so.
- h) Your appointment is subject to submission of your mark sheet/certificates with respect to all your educational qualifications and other past experience relevant documents as outlined in the resume. Any willful misrepresentation, falsification, manipulation, suppression and omission of facts may cause termination of employment at any point of time with immediate effect without prior notice.
- i) The Company reserves the right to re-check/verify/cross check each and every document/information furnished by you from time to time.
- j) Since the Company incurs significant expenses invested upon you by way of the work tools provided to you and the costs of training, skill & competence development and career & experience development incurred upon you; hence you will intend to work with the Company for a period of two continuous year's at least.
- k) **Superannuation/Retirement:** You will be automatically retired from the services of the Company upon reaching the superannuation age of sixty five (65) years or earlier in case you are found physically and/or mentally unfit to work in the role expected by the Company.

21. Communication: Any communication personally handed over to you with your signature on the duplicate copy will be deemed issued to you and received by you. In absence of this and/or where you have refused the acceptance of such personal delivery &/or refused to sign the duplicate copy, then such communication will be prominently displayed on the notice board &/or entrances of the office and will be sent to you by Registered Post and may also be emailed to you and any one of such actions (whether display, regd. Post or email) will deem the communication issued to you and received by you.

22. Arbitration: All disputes as may arise out of the employment or the terms therein shall be referred to the MD/COO/CAO/GM and Joint Management Committee who shall be the sole arbitrators and their decision shall be final and binding.

23. Injunctive Relief: In case of breach of any of the above clauses of employment, the Employee shall be liable to reimburse the Company with equitable relief to protect its interest therein, including, but not limited to injunctive relief and monetary damages. Further, the Employee will be liable to be prosecuted by the Company and his employment will be immediately terminated without notice or any compensation in lieu thereof.

24. **Governing Laws And Dates:** All dates and references to months in this agreement shall be according to the Gregorian calendar. This agreement shall be governed by the courts of Pune in Maharashtra and shall apply to the settlement of any dispute arising out of this agreement.
25. **Entire Agreement:** This Agreement and its Annexures thereto constitutes the entire employment agreement and understanding between the Employee and the Company with respect to his employment and supersedes all prior understandings and agreements and may not be changed or terminated unless as provided herein and by an instrument in writing.
26. **Severability:** If, in any legal proceedings it is determined that any clause or paragraph of this agreement is invalid or unenforceable, such clause or paragraph will be deemed to be severed from the remainder of the agreement. This Agreement will, in every other respect, continue in full force and effect.

Even in respect of any severed clause, the court making such determination shall modify, among other things, the scope or duration of only that provision, to preserve the enforceability thereof to the maximum extent then permitted by law.

27. **Acceptance:** The Employee has freely, willingly, & voluntarily agreed to sign this Agreement and its Annexures on all pages in acceptance thereof, and remains bound by its terms and conditions and promised to dutifully fulfill, honor & discharge the same.

I am (The Employee is) aware that the Company has decided to engage me only after my willing, unequivocal & total acceptance & agreement of the representations and assurances as above, made by me in a sound mind, and that the Company would not employ me for any non-acceptance or disagreement of the same.

Please return the duplicate copy of this letter duly signed in token of having willingly & in sound mind having agreed to & unequivocally accepted all of the above terms and conditions of this employment contract/letter.

Thanking you,

Yours truly,

For MDIndia Health Insurance TPA Pvt. Ltd.

M. Musharraf

Mohammad Musharraf
Assistant General Manager - Human Resources

(Signature)

Acknowledgement:

I agree to & accept the terms and conditions of this appointment letter and here below give my signature in acceptance of the same.

Signature : _____

Date: _____

Full Name: _____

Postal Address for Communication: _____

Phone Number: _____ Email ID: _____

Employee's Signature: _____

EMPLOYEE CONFIDENTIALITY AGREEMENT



Dear Sir,

I the undersigned **Mr Pruthviraj Santosh Mohite** a resident of **B-128, Akshat Nagar, Kolki, Satara, Maharashtra - 415523**, currently employed with MDIndia Health Insurance TPA Pvt. Ltd., in **Infographics, Analytics & Audit** department do hereby undertake:

1. That I will not disclose to any person within and / or outside the Company or to any subsequent employer and use in other than Company's business its confidential Information without the Company's written permission. The Confidential Information shall include but not be limited to any information which relates to the business, manufacturing methods, processes, techniques, products or research undertaken by the Company, which is treated and / or marked "Company Confidential ", or which may be reasonably understood by its nature, to be confidential, or which is received in confidence from third parties or customer of the Company. On termination of my contract /employment. I will not take with me (and I will promptly return any such material then in my possession) any material containing the Company's Confidential Information, including but not limited to process related material, blueprints or other reproductions, notebooks, documents and / or reports and in addition any products or items which are sold or leased by the Company, in its normal course of business.
2. To comply with and do all things necessary for the Company under the laws and regulations of any relevant Government, and with the provision of contracts between the Company and Company's customer, and the agencies of any government or their contractors which relate in particular, but not by way of limitations, to patent rights, copyright and other intellectual property rights, or to the safeguarding of information.
3. Not to use, install and download any unlicensed / pirated software during the tenure of my employment. In an event of breach of any Intellectual Property Rights (IPR) of third parties due to such unauthorized use, installation of any software of such third parties if any claim, cost, proceedings, expenses are impose on the Company by the third parties, then I shall fully indemnify the Company for such claim, loss, proceedings and expenses at actual.
4. Not to disclose to the Company, or induce the Company to use, any confidential information or material belonging to others.
5. To assign to the Company my entire right, title and interest in or to any patent right, copyright and any other intellectual property right which may subsist in any idea, invention and material, including process workflow, prepared for the Company wholly or in part by me at any time, during my contract tenure with the Company, and which relates in any manner to the actual or anticipated business, research or development of the Company, or is suggested by or result from any task assigned to me or work performed by me and / or on behalf of the Company, or is suggested by or result from the Company's confidential information.
6. To indemnify the Company against all losses or damages, cost, expenses incurred or suffered by the Company as a result of my failure to observe, perform or comply with the obligations, contained here in this Letter of Undertakings.
7. To authorize the Company to recover any amount due to me by the Company including but not limited to full and final settlement, and / or any retirement benefit for losses, expenses, claims arising out of failure to perform or observe any of the obligations under this letter of Undertakings.
8. That I will keep in strict confidence, any specialized to me by the Company to enable me to meet the job requirement assigned to me.
9. To agree that during my employment with the Company, I will not improperly use or disclose any proprietary information or trade secrets of any former or concurrent employer or other person or entity and that I will not bring on to the premises of the Company any unpublished document or proprietary information belonging to any such employer, person or entity unless consented to in writing of such information by such employer, person or entity.
10. That I will grant consent to notification by the Company to my new employer about my rights and obligation under this agreement, in the event of my leaving the employment of the Company.
11. I will not take photographs of any business/operations documents (viz. policy copy, claims/authorization letter, etc.) without the written permission of my HOD.
12. I will not bring Pen Drive, CD, Laptop, etc. without prior written permission of my HOD, and forward a copy of such permission to the IT Head and Admin Head.

I agree that any violation of the terms and conditions mentioned above shall be treated as Breach of Contract under the existing law of the land.

I agree that the law of the Republic of India govern this undertaking and reaffirm my resolve to fully abide with the provision and terms of my employment with MDIndia Health Insurance TPA Pvt. Ltd.

I agree that all disputes arising out of this letter will be subject to the jurisdiction of the Pune (Maharashtra) Court. And that the courts, tribunals and/or authorities at Pune (Maharashtra) only shall have jurisdiction to entertain, try and decide such disputes or differences arising out of or pertaining to this contract of employment, irrespective of the working location (posting) being elsewhere at that times.

Date: _____

Signature: _____

Full Name: _____

Address: _____

Employee's Signature: _____

ANNEXURE - I
(REMUNERATION DETAIL)

Name : Mr Pruthviraj Santosh Mohite
 Code : 19847
 Department : Infographics, Analytics & Audit
 Designation : Sr. Executive
 Grade : SL2
 Location : Head Office

Sr.	Particulars	Per Month	Per Annum
A	Salary And Allowances		
1	Basic	10856	130272
2	Special Allowance/DA	1794	21528
3	HRA	633	7596
4	Conveyance	1600	19200
5	Medical Allowance	1250	15000
6	Mdindia Allowance	5560	66720
		21693	260316
B	Gross Salary		
C	Retirals And Benefits		
7	Company's PF Contribution	1645	19740
8	Company's ESIC Contribution	0	0
9	Gratuity	608	7296
D	Incentive And Bonus		
10	Bonus	1054	12648
11	Annual Variable Performance Incentive	0	0
		25000	300000
E	CTC		
F	Deductions		
12	Employee PF	1518	18216
13	Employee ESI	0	0
14	Professional Tax	200	2400
G	Total Deductions	1718	20616
H	Net Salary = [(B-G) - Income Tax]	19975	239700

Please Note:

- The above emoluments are subject to contributions to PF, ESIC and deductions for ITax, PTax, LWF, etc. (The Company's PF contribution is inclusive of Administrative Charges as per the Act).
- Gratuity & Bonus will be applicable/governed as per the relevant Acts.
- Annual Variable Performance Incentive (if applicable) will be paid as per the Company policy. It may vary based on the project/vertical/branch/corporate financial performance.
- The management reserves the right to withdraw and/or modify the Performance Incentive at any point of time.
- Your remuneration is Strictly Confidential and should be treated as such. Disclosure is prohibited.

For MDIndia Health Insurance TPA Pvt. Ltd.

Mohammad Musharraf
 Assistant General Manager - Human Resources

Employee's Signature: _____